

USMMA FOOD SERVICES



PERFORMANCE WORK STATEMENT (PWS)

BACKGROUND

The United States Merchant Marine Academy (USMMA or Academy) at Kings Point, New York is a federal service academy founded in 1943. The USMMA mission is “To educate and graduate leaders of exemplary character who are inspired to serve the national security, marine transportation, and economic needs of the United States as licensed Merchant Marine Officers and commissioned officers in the Armed Forces. USMMA is part of the Maritime Administration (MARAD) and the U.S. Department of Transportation (DOT).

As one of the five United States service academies, the USMMA is charged with educating officers for the United States Merchant Marine. Students are referred to as Midshipmen and are taught marine engineering, navigation and other subjects consistent with operating merchant ships. Midshipmen are appointed from all 50 states and US territories. Approximately 750-800 are at the Academy during the Academic Year with an additional staff and faculty of approximately 300.

The USMMA campus is located approximately 2-3 miles from the Great Neck business district, the nearest concentration of restaurants and food service providers. Due to the nature of the campus and the academic schedule, there is generally insufficient time for faculty and staff to leave campus for breakfast and lunch during the workday. Additionally, Midshipmen, who receive regular, free meals in the mess hall (Delano Hall), sometimes want a variety of food beyond what is being served. As a Federal Service Academy, USMMA also regularly hosts formal events for Federal agencies, Academy-related functions and ceremonies.

OBJECTIVES

This is a performance-based work statement (PWS) for full-scale food services. The Academy anticipates the award of a fixed price, performance-based service contract to a qualified service provider with a demonstrated history of exceptional performance of work of similar size and scope in an environment of higher education or similar.

Food service quality shall meet recognized industry standards, as documented in the approved Quality Assurance Plan (QAP). Performance objectives include quality, timeliness, customer satisfaction, sanitation, staffing, and management oversight from the first Midshipman served to the last.

- The Contractor shall always maintain an adequate workforce for the uninterrupted performance of all tasks defined within this PWS when the Government facility is not open. When hiring personnel, the Contractor shall keep in mind that the stability and continuity of the workforce are essential. All Managers, Supervisors, Head Chefs, and Baker shall be reviewed and approved by the Contracting Officer's Representative (COR).
- The Contractor shall furnish all resources required to perform the services described in this Performance Work Statement, except for items specified as Government-furnished property. The food services provided during performance under this contract shall be in compliance with New York State Board of Health regulations. It is expected that the contractor will collaborate closely with the COR and adhere to the New York State fire code, as well as ensure maximum, appropriate student participation in food operation surveys.

SCOPE

General: This is a non-personal services contract to provide full scale food services at the United States Merchant Marine Academy (Academy) located at Kings Point, New York. The Government shall not exercise any supervision or control over the contractor performing the services herein. Such contract service providers shall be accountable solely to the Contractor who, in turn is responsible to the Government.

- **Services to be performed:** The Government and the Contractor shall develop and maintain an open and collaborative relationship to accomplish the mission and ensure the provision of full food service to all authorized patrons. The Contractor shall provide quality food service for Delano Hall; Academy Training Vessel; Team Movement (TM); Topside Dining Room; Patten Clinic Infirmary; Special Events, Dinners and Catering Requests; e.g. Birthday Celebrations; and Arrival of Plebe Class. During the performance period, the Government encourages the Contractor to propose any innovations that may lead to increased efficiency and or performance. The abrupt absence of any Contractor personnel does not at any time constitute an excuse for nonperformance under this contract. (Contractor/Representative of Randolph Sheperd must have at least 10 years of certified or equivalent culinary experience.)

- The Contractor shall perform the contractual requirements on a modified schedule as provided by the CO.
- The Contractor shall follow modified schedules as directed by the Contracting Officer (CO) and shall provide contingency support for military exercises, emergencies, natural disasters, or other incidents requiring continuation or expansion of food service. Contingency support may include preparing extra meals, extending or expanding meal periods, and arranging alternative feeding locations or meal distribution if Delano Hall or other facilities close. All contingency or special feeding actions require direction from the CO or designated Government representative (e.g., COR).

➤ **The Contractor shall perform the following tasks:**

- Provide supervisors that are accessible to the midshipmen during all scheduled mealtimes.
- Publish menu nutritional information for all meals.
- Serve meals on-time with limited wait times.
- Set each table with napkins and the preferred condiments: Heinz Ketchup, Guldens Spicy Brown Mustard, French's Classic Yellow Mustard, Frank's Red Hot Original Sauce, A-1 Steak Sauce, Lea & Perrins Worcestershire, Kikkoman Soy Sauce, and Mcilhanney Co. Tabasco Pepper Sauce.
- Prisoner of War (POW) Table shall be placed on the stage of the Delano Hall. Due to the significance of the POW table, this area, the table, chair, and all items on the table shall always be kept in immaculate order. The white tablecloth shall be changed as necessary to always present a clean, bright appearance. The silk rose shall be changed as needed due to dust and impurities in the air. The plate with salt and lemon wedge shall be placed on the table during formal Dinners. The framed explanation for the POW table and its contents shall always remain dust and stain free.
- Provide a variety of meal options for approval within an agreed to cycle with the COR.
- Always use fresh ingredients.
- Develop recipes that comply with the nutritional guidelines in the PWS and provide menu nutritional information for Midshipmen review and approval; submit recipes to the COR to demonstrate compliance with nutritional guidelines.
- Secure Delano Commissary at close of business daily.
- Ensure all cooking equipment is turned off when not in use.
- Transport all required equipment to and from alternate food service locations when meals are not served in Delano Hall, ensuring timely setup and breakdown.
- Provide a Dining Room Sign with a picture stating Food Contractor Manager on Duty.
- Provide the COR with the weekly manager coverage schedule and cell phone number.

- Ensure a minimum of four onsite visits per fiscal year by the Contractor's corporate Director of Operations, as requested by the COR.

➤ **Preventive Maintenance Requirements:**

- Descale dish machine and pot & pan machine as needed.
- Operate and maintain soft-serve machines in accordance with manufacturer instructions.
- Maintain Galley cleanliness on a "clean as you go" basis; clean and replace exhaust filters according to manufacturer recommendations and applicable NYS Board of Health and State Fire Code requirements.
- Maintain commercial ovens on a tiered cleaning schedule: daily wipe of exterior and interior surfaces after use; weekly or twice-weekly deep cleaning of racks, trays, and fan assemblies; and a monthly full deep cleaning including interior cavities.
- Implement a preventive maintenance plan for all food service equipment that follows manufacturer schedules, includes routine inspections, spare parts inventory, and contractor/vendor service records; provide the COR with copies of service reports upon request.
- Maintain maintenance and cleaning logs for all equipment and retain records for at least 12 months; make logs available to the COR during inspections.

➤ **Cost for Repairs:**

- The Contractor shall assume the cost of repairs when maintenance by an outside contractor is required due to Contractor neglect, malfunction, or failure.
- The Contractor shall promptly notify the COR of any repair issues requiring outside service and cooperate with repair vendors as needed.

➤ **Food and Menu Specifications:**

- Serve a variety of fresh whole fruits with all meals.
- Provide peanut butter, Jelly, and Nutella at every meal service in Delano Hall.
- Maintain a complete menu with options available throughout the entire meal service period.
- **Breakfast Bar:** Provide a minimum of 12 selections, including fresh-cut fruit and yogurt with a variety of toppings such as honey and maple syrup.
- **Lunch & Dinner:**
 - In addition to entrées, salad and soup bars shall be served with at least 12 selections, including toppings and salad dressings.
 - Include a pasta selection at dinner.
 - The lunch salad bar must also feature hot vegetables.
- **Desserts:** Offer a rotating dessert menu cycle that includes an ice cream bar and a pudding bar, both with a variety of toppings.

- **Entrée Requirements:**

- Serve whole muscle foods without fillers (e.g., chicken nuggets, chicken strips, hamburgers).
- Chopped meats and poultry must be at least 80% lean (80/20 fat ratio minimum).

- **Complete Meals:** Ensure all Midshipmen receive a complete meal that includes an entrée, toppings, condiments, beverages, desserts, and other accommodations.

- **Menu Suggestions:** Incorporate carving board selections, especially at brunch, such as London broil, carved turkey, corned beef, pastrami, baked ham, stir fry, authentic Chinese cuisine, steaks, and taco dinners.

- **Menu Approval:** All menus shall be reviewed and approved by the COR no later than Wednesday of each week prior to implementation and updates.

- **Food Sanitation Requirements:**

- The Contractor shall comply with all federal and state mandated sanitation requirements.
- Ensure all food service staff hold required food handler/manager certifications; provide copies of certifications to the COR upon request and maintain training records for 12 months.

- **Food Storage Requirements:**

- Opened food products shall not be stored in their original containers. Transfer opened products to food-grade, covered stainless steel or approved plastic pans/containers.
- All transferred containers must be covered, dated, and time-stamped on the container cover when opened. Containers and covers must be clean, waterproof, and stored per manufacturer and FDA/USDA temperature recommendations.
- Maintain a food storage log.

- **Housekeeping Services:** The Contractor shall furnish all equipment and supplies necessary to complete all housekeeping services. The Contractor is responsible for all housekeeping in Delano Hall including the Topside room.

- Submit a housekeeping schedule to the COR specifying daily, weekly, monthly, and quarterly tasks; update the plan as needed and provide revisions to the COR.

- **Cleaning & Sanitation Tasks and Frequencies:**

- Kitchen and Dining Areas: Clean and sanitize all dishes, pots, pans, food-contact surfaces, equipment exteriors/interiors (where accessible), and dining surfaces as required to support full food service operations. Document cleaning activities in daily logs.
- Dishwasher: Clean and inspect the dish washing machine at least three times per day and as required by manufacturer; log each cleaning/inspection with date, time, and staff initials.

- Soft-and Hard-Surface Floors: Clean all interior floors after each meal period to remove visible debris, dirt, and food residue. Check floors during service to identify and promptly remedy safety hazards. Kitchen floors must be maintained in a continuously safe and clean condition.
- Glass & Windows: Clean glass components of the facility's main entrance doors and adjoining panels and south exit doors daily. Clean dining area and Topside windows inside and outside every six months and spot clean as needed to remove smudges and stains.
- Carpets: Perform carpet spot cleaning as needed after each meal in the Topside room and other carpeted areas. Shampoo all carpets quarterly using a commercial extraction system; move or remove furniture as necessary during scheduled shampooing. Maintain a carpet cleaning log.
- Restrooms: Ensure customer and staff bathrooms are cleaned, stocked, and ready for use prior to the start of every meal service with germicidal detergent solutions; descale toilets and urinals as required. Log restroom cleanings per shift.
- Water Softener: Replenish pelletized salt for the water softener as needed.
- Dumpsters, Trash & Recycling Areas: Follow base guidelines for refuse disposal; do not place prohibited items in base dumpsters. Maintain the dumpster and garbage disposal areas in a clean, orderly, and odor-free condition at all times. Remove trash promptly and ensure containers are properly stacked/covered.
- Docks and Aprons: Keep docks, aprons, and loading areas cleared of trash; stack containers and carts in an orderly manner; remove snow and ice to outside areas (do not deposit snow from upper docks into lower dock areas). Pressure wash docks, aprons, and trash/recycling zones weekly when weather permits (no pressure washing if it will create freezing hazards).

➤ **Quality Control:**

- The Contractor shall develop, implement, and maintain a Quality Control (QC) inspection system to ensure all contracted services are performed in accordance with this PWS and generally accepted commercial and industry practices.
- The QC system shall be designed to keep Contractor management informed of all issues affecting quality, ensure timely corrective action, and maintain consistency in performance.
- The Contractor's Quality Control Plan (QCP) shall include:
 - Clear, complete, and current inspection instructions, auditing, and testing procedures.
 - Specific criteria for the approval and rejection of services in each inspection or audit; checklists may be used for this purpose.
 - Surveillance methodology for each major function.
 - Methods for tracking the quality of maintenance actions and personnel task proficiency.
 - Actions proposed to ensure top-quality operations, maintenance, and program management.
- The QCP shall be submitted to the Contracting Officer (CO) with the Request for Proposal (RFP) response.
- An updated copy shall be provided:

- On the contract start date,
 - Annually thereafter, or,
 - Immediately when changes occur.
- The objective of the QCP is to clearly describe the Contractor's philosophy, methods, and techniques used to ensure quality and consistency in meeting PWS requirements.
 - The Contractor's designated Quality Control (QC) Representative shall be independent of onsite contractor management to allow for unbiased evaluation of work quality.
 - QC inspection records shall include:
 - Nature and number of observations made.
 - Number and type of deficiencies found.
 - Nature and date of corrective actions taken.
 - The Contractor shall maintain complete QC records for all audits and inspections throughout the contract performance period and retain them until final settlement of any claims under this contract.
 - All QC records shall be made available to the Government upon request.
 - The Contractor shall cooperate fully with the Government Contracting Officer (CO), Contracting Officer's Representative (COR), technical representatives, investigative teams, inspectors, and other Government authorized personnel during daily operations.
 - The Contractor shall grant Government representatives full access to records, facilities, and personnel needed to verify contract compliance.

➤ **PHASE-IN PLAN:**

- The Contractor shall submit a complete phase-in plan, detailing actions to ensure a smooth transition into contract performance.
- If there is a change of contractor, the incumbent shall provide familiarization to the Government and the incoming Contractor upon CO request.
- Maintain full operation of all functions until the contract's completion.
- Perform a joint inventory of Government facility equipment and services with a Government representative no later than 60 calendar days before contract completion.
- The Government may conduct site visits in all Contractor-operated facilities during solicitation for the follow-on contract.
- The incumbent Contractor shall cooperate to permit an orderly transition to the successful awardee.
- Within seven working days after completion or termination of the contract, return all Common Access Cards (CAC) to the COR.

- Failure to comply may result in partial withholding of final payment.
 - During the last seven days of the contract, conduct a joint assessment with the COR to verify the condition and status of all Government facility equipment.
 - The Contractor shall cooperate fully with other contractors and Government personnel and shall not interfere with their performance.
- **Subsistence and Material Handling:** Delivery of all inventories will be inspected, received, and put away in the storeroom or respective areas upon receipt using First In, First Out (FIFO) method.
- The Contractor shall report and record unsatisfactory subsistence to COR.
 - The cooking staff shall have an input as to the quality of subsistence they are preparing and shall notify contractor management within 30 minutes of identifying any items that are not of satisfactory quality.
 - Progressively prepare food items to ensure optimum freshness, flavor, color, texture, and nutritional value.
- **Service of Food:**
- The Contractor shall promptly replace partially filled or empty containers with full serving containers to serving lines. Perform any cross-preparation in the kitchen area, out of view of the customers.
 - The Contractor shall replenish salads bars, ice cream, desserts bars, continental bars, beverages stations, condiments, to ensure availability to the customer throughout each meal.
 - All lines shall be presented at opening and during the entire meal with garnishes that are produced from fruit and vegetables that are colorful and decoratively eye appealing.
- **Contractor Identification:** All Contractor personnel must pass a background check through the Academy Public Safety Office at the expense of the Contractor. The Contractor shall not employ any person who is an employee of the U.S. Government if employing that person would create a conflict of interest, or the appearance of a conflict of interest.
- **Mission Essential Reporting:** Protocol related to inclement weather reporting and other conditions that may result in decisions for reduced staffing or closure of the Academy. Announcements related to these decisions are broadcast through various media to convey work expectations of military and civilian personnel employed by the DOT based on their designation by the DOT as falling into the category of “mission-essential” or “non-mission essential.” Contractor employees are governed by the employment agreements with their employers and are not impacted by the military and civilian workforce. Contractors are required to meet the performance expectations in the contract regarding hours of operation and service support. It is the Contractor’s responsibility to determine how to manage the workforce and meet contract expectations including dealing with inclement weather conditions. The Contractor shall coordinate with the COR concerning performance of PWS

requirements during adverse weather conditions. Delayed reporting or early release (for Government employees) does not relieve the Contractor of PWS performance.

- **Acts of GOD:** The Contractor shall use reasonable diligence to provide a regular and uninterrupted supply of service, but shall not be liable for damages, breach of contract or otherwise, to the Government for failure, suspension, diminution, or other variations of service occasioned by or consequence of any cause beyond the control of the contractor, including but not limited to acts of God or of the public enemy, fires, floods, earthquakes, or other catastrophe; strikes; of failure or breakdown of transmission or other facilities. If any such failure, suspension, diminution, or other variation of service shall aggregate more than 48 hours during any billing period hereunder, an equitable adjustment shall be made in the monthly billing specified in this contract (including the minimum monthly charge)

➤ **Recognized Holidays:**

New Year's Day	Labor Day
Dr. Martin Luther King Jr.'s Birthday	Columbus Day
President's Day	Veteran's Day
Memorial Day	Thanksgiving Day
Independence Day	Christmas Day
Juneteenth	

- **Post Award Conference/Periodic Progress Meetings:** The Contractor agrees to attend any post award conference convened by the contracting officials or contract administration office in accordance with Federal Acquisition Regulation Subpart 42.5. The Contracting Officer (CO), Contracting Officer's Representative (COR), and other Government personnel, as appropriate, may meet periodically with the contractor to review the contractor's performance. At these meetings, the CO will apprise the contractor of how the Government views the contractor's performance and the contractor will apprise the Government of problems, if any, being experienced. Appropriate action shall be taken to resolve outstanding issues. These meetings shall be at no additional cost to the Government.

PART 2
DEFINITIONS & ACRONYMS

2. DEFINITIONS

2.1. **CONTRACTING OFFICER.** A person with authority to enter into, administer, and or terminate contracts, and make related determinations and findings on behalf of the government.
Note: The only individual who can legally bind the government.

2.2. **CONTRACTING OFFICER'S REPRESENTATIVE (COR).** An employee of the U.S. Government appointed by the contracting officer to administer the contract. Such appointment shall be in writing and shall state the scope of authority and limitations. This individual has authority to provide technical direction to the Contractor as long as that direction is within the scope of the contract, does not constitute a change, and has no funding implications. This individual does NOT have authority to change the terms and conditions of the contract.

2.3. **DEFECTIVE SERVICE.** A service output that does not meet the standard of performance associated with the Performance Work Statement.

2.4. **DELIVERABLE.** Anything that can be physically delivered but may include non-manufactured things such as meeting minutes or reports.

2.5. **KEY PERSONNEL.** Contractor personnel that are evaluated in a source selection process and will be used in the performance of a contract by the Key Personnel listed in the PWS. When key personnel are used as an evaluation factor in best value procurement, an offer can be rejected if it does not have a firm commitment from the persons that are listed in the proposal.

2.6. **PHYSICAL SECURITY.** Actions that prevent the loss or damage of Government property.

2.7. **QUALITY ASSURANCE.** The government procedures to verify that services being performed by the Contractor are performed according to acceptable standards.

2.8. **QUALITY ASSURANCE Plan (QCP).** An organized written document from the contractor specifying how it will ensure quality and timeliness of services, as defined in the PWS.

2.9. **QUALITY CONTROL.** All necessary measures taken by the Contractor to assure that the quality of an end product or service shall meet contract requirements.

2.10. **WORKDAY.** The number of hours per day the Contractor provides services in accordance with the contract.

2.11. **WORK WEEK.** Monday through Friday, unless specified otherwise.

2.12. **NUTRITION.** The process of providing or obtaining the food necessary for health and growth.

2.13. **DEPLETED FOOD:** Menu food items that were exhausted and must be reported to the COR, including time of depletion, substitution, and number of Midshipmen served substituted meal.

ACRONYMS:

ACOR	Alternate Contracting Officer's Representative
CFR	Code of Federal Regulations
CONUS	Continental United States (excludes Alaska and Hawaii)
COR	Contracting Officer Representative
COTR	Contracting Officer's Technical Representative
COTS	Commercial-Off-the-Shelf
FAR	Federal Acquisition Regulation
HIPAA	Health Insurance Portability and Accountability Act of 1996
CO	Contracting Officer
OCI	Organizational Conflict of Interest
OCONUS	Outside Continental United States (includes Alaska and Hawaii)
ODC	Other Direct Costs
PIPO	Phase In/Phase Out
POC	Point of Contact
PRS	Performance Requirements Summary
PWS	Performance Work Statement
QA	Quality Assurance
QAP	Quality Assurance Program
QASP	Quality Assurance Surveillance Plan
QC	Quality Control
QCP	Quality Control Program
TE	Technical Exhibit

PART 3

GOVERNMENT FURNISHED PROPERTY, EQUIPMENT, AND SERVICES

- 3.1. **Services:** The Contractor is responsible for the operation of all food services as specified in this PWS.
- 3.2 **Facilities:** The Government will provide office space for the Contractor. The Contractor is responsible to equip the offices with the necessary equipment including but not limited to furniture, computers, telephones, and all other equipment required to operate academy food services.
- 3.3 **Utilities:** The Government will provide utilities of gas, phone lines, internet, and electricity required for food services. The Contractor shall instruct employees in utilities conservation practices. The Contractor shall ensure conservation of utilities, including turning off water, gas, electrical equipment when not in use throughout Delano Hall to include Topside.
- 3.4 **Equipment:** The Government will provide cooking, washing, warming, refrigeration, and electrical preparation equipment presently in the galley. This includes ovens, stoves, warmers, slicing machines, dishwashers, water softeners, pot and pan washers, hot serving lines, choppers, free standing refrigeration, walk-in refrigerators and freezers, flat grills, char grills, soft serve machines, floor cleaning machines and ice machines.

PART 4
CONTRACTOR FURNISHED ITEMS AND RESPONSIBILITIES

- 4.1 **General:** The Contractor shall furnish all supplies, equipment, facilities and services required to perform work under this contract, except those provided by the Government.
- 4.2 **Materials:** The Contractor shall provide all material necessary for operating food services, excluding those provided by the Government. Included but not limited to the sanitizing and cleansing agents for dishwashers and pelletized salt for the water softener.
- 4.3 **Equipment:** The Contractor shall provide all beverage machines, including but not limited to milk, coffee, hot chocolate, hot water, juice, soft drinks, soda, and dry cereal dispensers.
- 4.4 **Transition:** Service provider to propose a 30-day transition in and 30-day transition out plan, to be reviewed and approved by the COR and CO. The transition in plan shall be provided with the initial proposal for services, and the transition out plan shall be provided within 10 days of official request from the CO.

INSPECTION AND ACCEPTANCE

- Random inspections may be conducted by the COR to ensure performance requirements and quality standards are met in accordance with recognized industry standards and the Performance Requirements Summary.

DELIVERIES OR PERFORMANCE

➤ **GENERAL INFORMATION**

- Delano Hall type and Style (Subject to Changes) Brunch, Saturday Lunch, Dinner and Breakfast meals will be served “buffet” style or as otherwise directed within this document. Lunch served Monday – Friday will be served “family” style unless otherwise directed by the COR.
- For Family Style Meals the Contractor places on the table the required plates, cups, glasses, pitchers, utensils or any other items required to serve the meal. Certain foods as determined by the Contractor, such as bread and wraps, are also placed on the table by the Contractor. Midshipmen set the individual place settings. Each table has a Midshipmen Server who, after Grace, proceeds into the galley to pick up the entrée and the accompaniments. At the conclusion of the family style service, Midshipmen bus remaining foods onto the serving tray, remaining liquids into the pitchers, and stack the used dishes, cups, glasses, and utensils for pick up and collection by the Contractor.
- During Cafeteria Style meal service, exchanging pans will be done away from the serving line out of sight of Midshipmen and guests. Replenishing the Salad Bar will be done in the same manner.
- Daily Food Production Sheets and Food Waste Sheets for all meals and all menu items are

to be processed to evaluate changes for future meals and to reduce the waste of food. This is to include the soup and salad bar. These sheets are to be available to be audited by the COR. If food items on the menu are exhausted, the time of the depletion shall be written on the Production sheet, to include the number of Midshipmen who did not receive the depleted menu food item. Increase adjustments in food production are to be indicated for the following meal. COR is to be notified via email if menu items were depleted, time of the depletion, the substituted item, and how many Midshipmen received the substituted food item.

- Midshipmen are allowed to eat and drink until satisfied, and the Contractor must provide sufficient food to meet this standard. Midshipmen are allowed to bring their personal beverage container, no larger than 20oz, into Delano Hall. The container may be filled once during the course of a meal. Midshipmen are allowed to take their Dinner meal to go if they do not desire to dine in Delano Hall.
- All menus shall be approved by the COR a minimum of 5 days in advance.
- The Contractor shall post weekly menus on designated menu boards.

➤ **ACADEMY TRAINING**

- Food Services for all required meals shall be provided by the Contractor for the Academy Training Vessel (Kings Pointer). The number of Midshipmen and Crew on board for these trips can range from approximately 25 – 40 people. Trips can include day, overnight, weekends, or additional trips for a period of approximately 10 days or more.
- **On-Board Chef:** For most of the trips, a chef will be required on-board for the duration of the trip for food preparation and service, as selected and scheduled by the COR. The chef is required to provide services for overnight, weekend or extended cruises. He/she is required to perform cleaning functions in the galley and/or supervise personnel assigned mess duties for those meals served aboard. In addition, the designated chef should be trained and capable of operating effectively in an “at sea” environment. The Contractor is responsible for ensuring that all meals provided on the Kings Pointer follow all New York State Board of Health Requirements and all inspections applicable to Delano Hall standards are performed.
- **Menu Items:** The food served on the Kings Pointer or other vessel as directed by the COR, will follow the Delano Hall six-week menu cycle. The COR can change menu requirements. All needed supplies are also to be furnished by the Contractor including disposable items such as utensils, napkins, cups, and plates required for on board food services. The Contractor will also supply the needed cleaning agents. The Contractor is responsible for placing all foods and supplies on the training vessel and removing all foods and supplies at the completion of the mission.

➤ **TEAM MOVEMENT (TM) FOOD REQUESTS**

- **TM Definition:** Team Movement (™) Food Requests are for Midshipmen who cannot attend a scheduled meal because they are participating in an approved team or club activity. The Team Movement Food Requests are usually when Midshipmen are away from the Academy on authorized activities. TM Food Requests can be granted when Midshipmen are at the Academy with authorization from the COR. If an on-site TM is approved, a Midshipmen sign-up sheet is required stating that the Midshipmen below have signed up for the TM, will attend the TM, and will not attend the corresponding meal in Delano Hall.

- **Additional Circumstances:** There are additional circumstances when Midshipmen are at the Academy and TM Food Requests are required. These circumstances or activities can include waterfront BBQ, company morale event, emergency medical technician training, honor boards, or any additional TM Requests coordinated by the COR.
- **Manager Checks:** It is the responsibility of the Food Service Manager to check for proper preparation, storage, and issuance of Team Movement Food Requests. A manager is to sign each TM to ensure compliance to the above.
- **Early/Late Meals:** TM Food Requests may also include early and late Breakfast, Lunch and Dinners in Delano Hall based on the needs of athletic teams throughout the academic year.
- **No Additional Charge:** The Contractor is to supply food for Midshipmen at no additional charges for Official Team Movement Food Requests. When a TM Food Request is processed, these Midshipmen will not be attending the scheduled Breakfast, Lunch or Dinner or brunch meals in Delano Hall. Therefore, the Contractor is authorized to reduce the number of meals to be served in Delano Hall for the TM Food Requests which are processed. The Contractor shall inform the Regimental Commissary Officer and the COR at least two days in advance of which tables are requested to be closed. The Contractor is to place signs on the closed tables stating the reason for the closure. Table closings are to be rotated.
- **Approval:** The TM Food Requests must be approved by the Contracting Officer's Representative with Movement Orders attached to the Team Movement Request Form. The Movement Orders are to include the names of all Midshipmen on the Team Movement, destination, time of departure, and time of return, and the names of the Officer in the Commandant's Office who has approved the Movement Orders.
- **TM Foods:** TM foods are comparable to items in the six-week menu cycle and may include prepared or uncooked foods (e.g., barbecue items). TM Food will include individual box meals, platters, and bulk packaged items. The Contractor is responsible for the processing of the order, and preparation and distribution of all TM Food Requests. Any food items requested outside of the approved TM menu are not included within the standard TM offering and will be provided at the sole expense of the requestor. Requests of this nature are subject to availability and will not be processed without acknowledgement of the associated cost.
- **Alternate Locations:** A TM Food Request can also include when an entire scheduled Breakfast, Lunch or Dinner meal is moved from Delano Hall location to a different location on Academy grounds such as Waterfront, Land Hall, Barney Square, O'Hara Hall, Tomb Field, Roosevelt Field, and the Museum. Again, there is no additional charge for these services. TM food requests designated for delivery to an Officer's Quarters on campus are not included within standard TM support. The requesting Officer is solely responsible for coordinating and executing pick-up at the approved time and location.
- **Paper Supplies:** All paper supplies and plastic utensils are to be included for the TM Food Requests. Charcoal and Lighter Fluid are not supplied for barbeques. Styrofoam is not allowed throughout Delano Hall including TM Food Requests. Disposables are to be heavy duty gauge unless otherwise instructed by the COR. Disposables throughout the Academy are to be environmentally friendly in meeting the goals of the USMMA/MARAD/ and DOT.
- **Four-Day Notice:** Team Movement food request(s) must be received with a minimum of four-day notice to the COR. The four-day notice does not include the day the TM request is dropped off or the day of pick-up. Saturdays and Sundays are also excluded from the four-day

count. If there is a food TM request for Monday, the submission date is NLT Monday of the previous week.

- **Menu Variation:** Variations of menu selection are essential for Midshipmen satisfaction. New breads, desserts, beverages, menu items, are required on a rotating basis to prevent boredom of TM Food Selections. TMs are to be prepared as close to pick up time as possible.
- **Game Day:** Special consideration for teams on game day: Athletic teams, upon request, will be offered the Midshipmen Menu soup and salad bar in Delano Hall in addition to TM Food Requested, which will be served four hours prior to any home game.
- **Cancellation:** Cancellation of a TM food request, when communicated in a timely manner, will not result in additional cost to the Academy. This provision does not apply to the TMs that are prepared but not picked up due to negligence; such instances may result in associated costs. Any TM not picked up as scheduled shall be reported in writing to the COR no later than the next business day.

➤ TOPSIDE DINING ROOM

- The Topside Dining Room may be used for Academy Official Functions. It will be the responsibility of the Contractor to supply the required food services for any or all meals, 7 days a week. All types of food service can be requested including buffet style and waiter service. The Contractor shall assign a manager to be present for all Topside Dining Room events. A Midshipmen meal may be served in the Topside Dining Room at no additional cost, using menu items from the six-week Midshipmen menu cycle. Guests shall pay the cost of the meal at the non-Midshipmen rate.

➤ PATTEN CLINIC INFIRMARY

- **Meal Type:** The Contractor is required to provide food service to Midshipmen who are too ill to attend meals in the Delano Hall. Special diets, including liquid diets, shall be provided within the cost of the Midshipmen daily menu selections. Low fat diets may include soft-food or liquid meals to Midshipmen who have been designated by the medical officer to be too sick to attend class, but not sick enough to go to the hospital. The Medical Officer must designate the menus and quantity of such meals. The Contractor must provide meals for pick-up and delivery to the Midshipmen's location by the Command Duty Officer or his/her designated representative. The Contractor shall provide the meals in the numbers requested by the COR at specified times. Meals shall be served on disposable dishes with disposable utensils. Delano Hall dining equipment shall not be removed from the facility.

➤ **SPECIAL EVENTS** (Includes special and Holiday meals)

- There is no additional charge for Midshipmen for special events. Guests will pay the cost of the meal. Guests are invited to all Midshipmen Special Events. All special events, unless otherwise stated by the COR, will have a dais (VIP) set up with china and glassware at individual place settings; which seats up to 22 people, if there is no dais, there will be VIP tables set in the dining room receiving the same individual VIP service as the dais and there can be up to 4 tables; sitting up to 32 VIP guests. VIP table service includes individual plating of food for all guests and shall not be served family style unless otherwise instructed by the COR. It is the responsibility of the Contractor to issue all serving instructions for all Special Event Dinners and Special Events when applicable.
- All dinners include coffee, tea, and soft drinks. The Contractor is responsible for providing all the needed food, staff, and materials for the Special Events. Annual themed special events will include: Super Bowl themed meal and decorations, Battle Standard Dinner, Thanksgiving Dinner, Holiday Dinner, 3 Midshipmen Steak Dinners, Midshipmen Appreciation Day, Athletic Team Morale Dinners, 3 Lanier Dinners, Parents Weekend Dinner, Graduation Lunch, the Academy's Annual Birthday (September 30th), each Military Branch of Service Birthday, celebrated with Cake and Desserts for Midshipmen Lunch. Additional special events and celebrations may occur during the academic year, to be communicated by and approved by the CO.
- The Battle Standard Dinner is an upscale Regimental Dinner in memory of the 142 Midshipmen casualties during WWII. An example of a meal that was provided in the past for The Battle Standard Dinner included and wasn't limited to; Salad, a seafood selection (e.g. shrimp, lobster, crab), Beverages, 12-ounce boneless PRIME steak, Gourmet Dessert. Comparable/Equal selections shall be considered when menu planning. Event preparation details and menus shall be coordinated through the COR and approved by the CO.
- Thanksgiving Dinner and Holiday Dinner will be served approximately one week prior to the actual Holiday.
- A live Christmas tree is provided to the Academy, for the Midshipmen, to be placed in Delano Hall. The Contractor is responsible for watering the tree daily.

➤ **INDOCTRINATION: ARRIVAL OF PLEBE CLASS**

- Indoctrination is an approximately 3-week "boot camp" for the entering Plebe class. It commences at approximately the first week of July; starting with the arrival of Midshipmen Trainers followed by the Plebe Class. When the Plebe Class arrives, all 3 meals shall be served family style with menu selections suited to hot-weather training, avoiding spicy foods at lunch. Menus shall align with the stated food specifications. Mealtimes may be adjusted for buffet and family-style service in coordination with the COR. During Indoctrination, midshipmen not participating in Plebe Indoctrination activities will dine on the designated opposite side of Delano Hall. Meal service for these midshipmen will remain consistent with the standard academic year menu and service format.

➤ **Arrival of Midshipmen Trainer Meals - Buffet Style (Approximately 5 days)**

Approximate Schedule:

Breakfast	0700 – 0730
Lunch	1200 – 1245
Dinner	1730 – 1815

➤ **Plebe Candidate Meals**

Approximate times for Family Style Service with the arrival of Plebe Candidates is as follows:

Breakfast	0645 – 0730
Lunch	1230 – 1315
Dinner	1800 – 1845

➤ **Hours of Operation (Standard Year-Round)**

The Academy is open 7 days; Monday through Sunday including Federal holidays except for when the Government facilities are closed due to local or national emergencies, administrative closings, or similar Government directed facility closings.

The contractor shall maintain hours of operation as necessary to meet the service schedule:

➤ **Delano Hall Meal Schedule - Standard Operating Hours (Subject to Change)**

Breakfast	Buffet Style	Monday – Friday	0630 – 0720
Breakfast	Buffet Style	Saturday	0700 – 0800
Lunch	Family Style	Monday – Friday	1220 – 1250
Lunch	Cafeteria Style	Saturday	1145 – 1230
Dinner	Cafeteria Style	Monday – Friday	1730 – 1945
Dinner	Cafeteria Style	Saturday	1730 – 1900
Brunch	Cafeteria Style	Sunday	1030 – 1230
Dinner	Cafeteria Style	Sunday	1730 – 1900

If Brunch is requested in place of Breakfast and Lunch, Brunch will be served approximately 1030 - 1130

➤ **Coffee and Tea will be available in the Library Sunday – Thursday evenings (5 days a week) at the following times:**

- Delivered at 1900 (7PM)
- Coffee containers to be returned to the commissary by 1000 (10AM) the following day.
- During the required serving hours for the dining facility, any authorized patron may select food from the current menu.
- The Contractor shall not remove foods from the serving area until 15 minutes after the end of the posted meal hours. The 15-minute requirement also applies to temporary changes of scheduled or posted meal hours.
- During the required 15-minute extended feeding time, patrons shall not be approached by any contract employees to ask if the patrons require any seconds or intend to use the salad bar or pastry bar. This allows all patrons the necessary time for serving seconds at the patrons' discretion.

USMMA FOOD SERVICES

TECHNICAL EXHIBIT 1

Performance Requirements Summary (PRS)

The contract service requirements are summarized into performance objectives that relate directly to mission essential items. The performance threshold briefly describes the minimum acceptable levels of service required for each requirement. These thresholds are critical to mission success. There will be random audits by COR.

Performance Objective (The Service required—usually a shall statement)	Standard	Performance Threshold (This is the maximum error rate. It could possibly be “Zero deviation from standard”)	Method of Surveillance
PRS # 1. The contractor will provide the highest quality food products, preparation, and serving techniques.	The contractor must meet or exceed USDA Grade A standard. Produce must be unbruised and be unblemished in appearance. Where a fresh product is available, whether it be meat, produce, vegetables or other food items, the contractor shall provide fresh before frozen, packaged or canned and frozen before canned. No MSG or Trans Fats or lard.	The contractor must meet this objective at least 90%.	Invoices of food purchases, and visual observation of food quality and service.

PRS # 2 The contractor will provide food service in a timely manner.	The contractor must meet timeliness as measured by time between preparation and serving and processing the service to midshipmen at the required times.	The contractor must meet this objective at least 95%.	Visual observation of food service.
PRS # 3 The contractor will provide food service that is nutritious and healthy as defined in the definitions section.	The contractor must meet or exceed the government standards for nutritional values and dietary requirements as outlined in the PWS. This includes but is not limited to meal calorie count, sodium content, and sugar content as required by a certified dietitian.	The contractor must meet this objective at least 95%.	Dietitian review of menus, visual inspection of food, and independent analysis of food content.

PRS # 4 The contractor will provide food service that is satisfactory to midshipmen based on regular, electronic surveys.	The contractor must provide an electronic means (preferably by email) of collecting survey data. The contractor must gather regular, weekly surveys on food service and quality, provide the raw results to the COR, and evaluate the results and take action to address deficiencies and recommendations provided in the survey.	The contractor must meet this objective at least 95%.	Weekly electronic survey reports.
PRS # 5 The contractor will conduct all operations consistent with NYS Board of Health standards.	The contractor must meet or exceed New York State Board of Health standards and industry practices, including fire codes.	The contractor must meet this objective at least 100%.	Daily inspections

In addition to service requirements summarized in the PRS, additional minimum quality standards are mandatory based on historical information and midshipmen feedback:

- **Training of Personnel:** The Contractor shall provide a trained, qualified workforce to perform the full food service requirements of this PWS. The Contractor shall maintain records on individual employees that contain, at a minimum, the experience (resume), qualifications, and training data for that employee. Employee records shall be made available to the Government upon request.
- The Contractor shall ensure that contract supervisors receive food handlers'

training (four hours); this shall be completed before start of employment. Supervisors shall accomplish refresher training annually (totaling four hours throughout the year) from an individual designated by the Director of Military Public Health (MPH). This training class is approximately two hours in length and will be conducted bi-annually. All non-supervisory employees shall be trained in food handling techniques by Contractor supervisors that have attended the food handlers' training course. Refresher training is repeated annually for personnel to be aware of their responsibilities in safe food handling. A list of personnel who are trained shall be submitted to the COR at the beginning of each month.

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Technical Exhibit 2

DELIVERABLES SCHEDULE

<u>Deliverable</u>	<u>Frequency</u>	<u># of Copies</u>	<u>Medium/Format</u>	<u>Approved by</u>
Menus.	Due Wednesday of each week for the following week.	1	Paper (hard copy) and email.	Contracting Officer Representative
Survey Reports.	Due the first week of the month for the previous month.	1	Paper (hard copy) and email.	Contracting Officer Representative
Food production sheets.	Due Wednesday of each week for the previous week.	1	Paper (hard copy) and email.	Contracting Officer Representative
Individual food item specifications.	Due the first week of the month for the previous month.	1	Paper (hard copy) and email.	Contracting Officer Representative
Transition Plans, Phase-In/Phase-Out	In- to be provided with proposal. Out- within 10 of receipt of CO request.	1	Paper (hard copy) and email.	Contracting Officer and Contracting Officer Representative
Maintenance/Cleaning	As required	1	Paper (hard copy) and email.	Contracting Officer Representative
Housekeeping	As required	1	Paper (hard copy) and email.	Contracting Officer Representative

Carpet Cleaning	As required	1	Paper (hard copy) and email.	Contracting Officer Representative
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*Contractors shall be required to perform in accordance with the Deliverable Schedule included herein.

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Technical Exhibit 3

CONCESSIONS

➤ General Conditions:

This contract includes concession services for the operation of concession food and beverage service at the Academy provided in the Seafarer Café and Athletic Concessions.

- USMMA is seeking a qualified and experienced food service provider for concession operations at the Seafarer Café in accordance with the conditions set forth below. **The Seafarer Café** is a food service cafeteria open to faculty, staff, contractors, Midshipmen, and the public, and it is located on the zero deck (basement) level of Delano Hall with a grade-level entryway from the main square (Barney Square). The Contractor will provide counter service only at the Seafarer Café during the Academy's core hours, Monday through Friday; however the Academy invites proposals that offer additional or alternative hours that the concessionaire believes would be most profitable. The Contractor will operate the establishment solely with their funds. Leftover foods that were served to the Midshipmen, will not be resold to guests in the Seafarer Café. The Seafarer Café space and equipment will be provided to the contractor in accordance with this portion of the contract. With the understanding that any operational and maintenance cost, and ancillary equipment shall be the sole responsibility of the service provider. This is to include any repairs and maintenance required to properly run the concession.
- **Brooks Stadium** is the Academy's athletic field and contains concessions to support athletic events. **Raymond J. Bartoszek '86 Field** also contains a small concession stand for home games. The Contractor will operate both concession establishments solely with its funds. The concession stands shall open a minimum of one-half hour before the game and remain open a minimum of 15 minutes after the conclusion of the game. If the temperature is over 75 degrees, an additional satellite unit should be opened to sell an assortment of cold beverages with the option of additional food products. The Athletic Concession Stands will be provided to the Contractor, with the understanding that any operation cost will be the responsibility of the Contractor. This is to include any repairs and maintenance required to properly run the concession. The service provider is invited to propose additional services as options of revenue.
- The Contractor assumes all responsibility for the operation of all concession stands at the facilities at its own costs; and the contractor keeps all revenue collected. Equipment currently in each facility will be accepted by the contractor in an "As Is" condition and remains the property of the Academy.

- The Academy will be responsible for repair and/or replacement of stationary Government equipment that is permanently affixed or attached to the building such as ovens, ranges and grills so long as they have been properly maintained by the Contractor. The replacement of or purchase of Government owned equipment or alteration to the facility is not authorized without the prior written concurrence/approval of the Academy, Contracting Officer (CO) and Contracting Officer's Representative (COR).
- The Academy will be responsible for maintaining the building, including but not limited to heat, air conditioning, interior walls, ceilings, and lighting. Weekly extermination will also be the responsibility of the Academy. The COR will provide a copy of the extermination report to the Contractor. The Contractor is responsible for correcting any problems or violations noted on the report. The Academy will clean the above hood cooking exhaust vent system quarterly. The Contractor will be required to clean the filters of the exhaust system daily.

➤ REQUIREMENTS – DELANO FOOD SERVICE & CONCESSION STANDS OPERATIONS – STANDARDS

- The Concessionaire shall comply with all applicable State and Federal labor and health laws including New York State Department of Health Standards: The Concessionaire shall adhere to Food Services standards specified in New York State Department of Health, Community Sanitation and Food Protection Chapter 1, State Sanitary Code Food Service Establishment, Subpart 14-1. This includes amendments effective January 8, 1997 and any other federal, state, or local food service regulations, plus any future amendments, additions, or changes to Board of Health Sanitary Codes (See Chapter 1 State Sanitary Code Book Attachment).
- The Seafarer Café will be open to the public.
- The Contractor is responsible for providing all staff to operate the facilities. The Concessionaire shall designate, in writing, a Contractor representative who will be the single point of contact and have full authority to act on behalf of the contractor on all matters related to the concession contract.
- Background Check: All employees, when hired by the contractor, will be required to pass a Department of Transportation (DOT) background check, submit required security information, and meet compliance due dates. All costs associated will be the responsibility of the Concessionaire. This requirement applies to all employees performing under this contract.
- At least once per calendar year, the contractor must conduct a full New York State Sanitary Code On-Site Inspection, by a state-approved inspector and in coordination with the COR and provide the COR a written report on the findings. The Contractor must correct all violations upon notice of the

violation in accordance with state and federal and written policies of the Academy.

- The Academy, for the duration of this concession contract, may request a full New York State Sanitary Code On-Site Inspection at any time. The Contractor must correct all violations upon notice of the violation in accordance with state and federal and written policies of the Academy. The inspector shall be given access to inspect with the coordination of the Contracting Officer and the COR.
- The Contractor must maintain written on-site records of all inspections conducted and corrective action taken. This documentation shall be made available to the COR upon request during the term of the contract. This requirement applies to the entire contract.
- The COR will verbally notify the Manager on duty (or person in charge) of any non-compliance health or safety concerns under the concession contract. The COR will also prepare a written report for the Contractor, person(s) in charge of food service operations and the corporate office (if any). Non-Compliance issues must be corrected on a timely basis in accordance with state and federal regulations.
- At a minimum of once every two weeks, the COR will meet with the Contractor's on-site manager to discuss operations of the facility, including but not limited to customer satisfaction, service concerns, achievements, repairs, sales, menus, specials, and any other items and concerns related to the Contractor's operation of food services.

- Physical Security: The Contractor shall be responsible for safeguarding all Academy property, and for safeguarding and securing its area of operation. The Concessionaire will be responsible for repairing or replacing Academy property if it is determined the Contractor was negligent in the physical security of the building and/or Government property. The Contractor must immediately inform the COR, in writing, of any issues with securing the food service area(s), including but not limited to doors not locking, a swipe card system not working, or an alarm system not functioning.
- The Contractor must maintain compliance with the Occupational Safety and Health Act (OSHA). No alteration to the facility can be made without specific written prior permission from the Contracting Officer and Academy. Any alteration remains the property of the Academy.
- The Contractor is responsible for maintaining and repairing Government furnished free-standing equipment damaged due to their negligence. Repairs must be conducted by a properly licensed business and use Original Equipment Manufacturers (OEM) parts for the repair. If the equipment cannot be repaired, the Concessionaire will replace the equipment with identical or better equipment at no cost to the Academy. The Concessionaire will provide the COR with written notice of equipment repaired, the date of repair, and a list of parts for the repair. If equipment is to be replaced, the Concessionaire must give the COR a written description of the equipment to be purchased and obtain concurrence from the Academy. No Government furnished free-standing equipment may be removed from the facility or disposed of without the prior written consent of the Academy.
- Operation of Food Services: The Contractor is responsible to supply all the necessary food, labor, personnel, tools, equipment, materials, transportation and supervision to operate the establishment. All deliveries must follow the current USMMA policies. The Government has no financial responsibility for the Concessionaire's operation of the Seafarer Café.
- The kitchen, storerooms, service areas, and dining areas must be kept thoroughly clean and tidy always in accordance with a cleaning schedule, which a copy will be provided to the COR. Charts are to be maintained by the Contractor listing the daily and weekly cleaning schedules and the completion of prescribed items.
- The Contractor is responsible for cleaning linen when required for meals, including special events.
- The Contractor must accept cash, credit cards, and debit cards during all operations.
- The Contractor must provide appropriate liability insurance for each facility in accordance with state and federal regulations.

➤ Conservation and Use of Facilities: The Contractor shall take appropriate steps to conserve energy furnished by the Academy.

- Knowledge of Operation of Equipment: The Contractor must know how to operate and maintain the equipment, including preventive maintenance. The Contractor is responsible

for training all its employees on the safe and effective use of equipment, at the Contractor's expense.

- Safety and Accident Prevention: The Contractor agrees to take all reasonable steps and precautions to prevent accidents and preserve the life and health of all individuals working at, dining at, or otherwise present in the facilities maintained by the Contractor. Any violation of such rules and requirements, unless promptly corrected, can be grounds for termination of this contract.
- In the performance of any work under this concession on premises that are under the direct control of the Academy, the Contractor must conform to Nassau County Health Regulations, as well as all applicable State and Federal Regulations, including OSHA.
- Permits and Licenses: The Contractor is responsible for obtaining all permits and licenses required to perform this contract.
- Seafarer Café Operating Hours:
 - Required hours within Academy core hours:

Monday -Friday

Breakfast 0730 - 1030
Closed 1030 - 1130
Lunch 1130 - 1400
Dinner Closed
- Additional hours of operation in coordination with the COR. Special events will include, at a minimum, all Home Football Games (approx. five (5) per year), Graduation Weekend, Parents Weekend and Homecoming Weekend.
- The Academy operates with a reduced population for approximately four weeks in the June/July timeframe and approximately two weeks in the December/January timeframe. During these periods, the Contractor may adjust operations in coordination with the COR but remains responsible for providing all meals to Midshipmen remaining onboard.
- Grade of Food Serve Inspection: The Contractor must always maintain unrefined and minimally processed food during all concession operations.
- The Contractor's proposed menu must be coordinated with the COR prior to starting operation, and all changes to the menu also be coordinated with the COR. The menu will be in keeping with the standard uniform food services at the Academy.
- Game schedules and Government Furnished Property to be utilized under this contract shall be provided by the COR.

PLACE OF PERFORMANCE

USMMA Campus, 300 Steamboat Road, Kings Point, N.Y. 11024

Technical Exhibit 4
Quality Assurance Surveillance Plan (QASP)

PURPOSE

This Quality Assurance Surveillance Plan (QASP) provides a systematic method to evaluate performance for the stated contract. This QASP explains the following:

- What will be monitored?
- How monitoring will take place?
- Who will conduct the monitoring?
- How monitoring efforts and results will be documented.

This QASP does not detail how the Contractor accomplishes the work. The QASP is created with the premise that the Contractor is responsible for management and quality control actions to meet the terms of the contract. It is the Government's responsibility to be objective, fair, and consistent in evaluating performance. This QASP is a "living document" and the Government may review and revise it on a regular basis. However, the Government shall coordinate changes with the Contractor. Copies of the original QASP and revisions shall be provided to the Contractor and Government officials implementing surveillance activities.

GOVERNMENT ROLES AND RESPONSIBILITIES

The following personnel shall oversee and coordinate surveillance activities.

- a. Contracting Officer (CO) - The CO shall ensure performance of all necessary actions for effective contracting, ensure compliance with the contract terms, and shall safeguard the interests of the United States in the contractual relationship. The CO shall also ensure that the contractor receives impartial, fair, and equitable treatment under this contract. The CO is ultimately responsible for the final determination of the adequacy of the Contractor's performance.
- b. Contracting Officer's Representative (COR) - The COR is responsible for technical administration of the contract and shall ensure proper Government surveillance of the Contractor's performance. The COR shall keep a quality assurance file. The COR is not empowered to make any contractual commitments or to authorize any contractual changes on the Government's behalf.

PERFORMANCE STANDARDS

Performance standards define desired services. The Government performs surveillance to determine if the Contractor exceeds, meets or does not meet these standards. The Performance Requirements Summary Matrix below includes performance standards which will be used. The Government shall use these standards to determine contractor performance and shall compare Contractor performance to the Acceptable Quality Level (AQL).

INCENTIVES VERSES DIS-INCENTIVES

The Government shall continue to exercise option years (periods) and the use of agreement with Contractors as an performance incentive. Incentives shall be based on exceeding, meeting performance standards which have been identified as the key performance standards above. Disincentives shall be

based on not meeting performance standards which have been identified as the key performance standards above. The below indicated methods of surveillance will be used by the COR and all program representatives to identify the compliance of the Contractor.

METHOD OF SURVEILLANCE

Various methods exist to monitor performance. The COR shall use the surveillance methods listed below in the administration of this QASP.

a. DIRECT OBSERVATION. (Can be performed periodically or through 100% surveillance.) PWS ID 1; 2; 3; 4; 5; 6

b. PERIODIC INSPECTION. (Evaluates outcomes on a periodic basis. Inspections may be scheduled [Daily, Weekly, Monthly, Quarterly, or annually] or unscheduled, as required.) PWS ID 1; 2; 3; 4; 5; 6

c. 100% INSPECTION. (Evaluates all outcomes.) PWS ID 1; 2; 3; 4; 5; 6

RATINGS

Metrics and methods are designed to determine if performance exceeds, meets, or does not meet a given standard and acceptable quality level. A rating scale shall be used to determine a positive, neutral, or negative outcome. The following methodology/rating criteria shall be used:

Upon receiving the contract, the contractor will provide a Schedule and Contractor Staffing Declaration of personnel employees assigned to work at each location site. The schedule must be pre-approved by the government COR.

The performance evaluation below will be completed upon the completion of each option period to justify the execution of the next option year or termination of contract terms.

DOCUMENTING PERFORMANCE

ACCEPTABLE PERFORMANCE

The Government shall document positive performance. Any report may become a part of the supporting documentation for any contractual action.

UNACCEPTABLE PERFORMANCE

When unacceptable performance occurs, the COR shall inform the contractor. This will normally be in writing unless circumstances necessitate verbal communication. In any case the COR shall document the discussion and place it in the COR file and/or provide a copy to the CO.

When the COR determines formal written communication is required, the COR shall prepare a Contract Discrepancy Report (CDR) and present it to the Contractor's program manager.

The Contractor shall acknowledge receipt of the CDR in writing. The CDR will specify if the Contractor is required to prepare a corrective action plan to document how the Contractor shall correct the unacceptable performance and avoid a recurrence. The CDR will also state how long after receipt the Contractor must present this corrective action plan to the COR. The Government shall review the Contractor's corrective action plan to determine acceptability.

Any CDRs may become a part of the supporting documentation for any contractual action deemed necessary by the CO. If the Contractor fails to cure problems and/or fails to perform in accordance with the terms and conditions of the contract, the contract may be found to be in breach of contract and payment may be withheld by the government until the problems have been fully resolved.

FREQUENCY OF MEASUREMENT

Frequency of Measurement: During contract performance, the COR will periodically analyze whether the negotiated frequency of surveillance is appropriate for the work being performed.

Frequency of Performance Assessment Meetings: The COR shall meet with the contractor on an as needed basis, as well as, at the end of the contract period to determine award or execution of option period to assess performance and shall provide a written assessment. The COR Delegation Letter will further define other duties and responsibilities of the COR; to include but not limited to quarterly meetings, quarterly evaluations, quality assurance reports and training.

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